This amendment shall become effective this 27th day of February 1943.

(Pub. Laws 421 and 729, 77th Cong.; E.O. 9250, 7 F.R. 7871)

Issued this 22d day of February 1943.

PRENTISS M. BROWN,
Administrator.

[F. R. Doc. 43-2873; Filed, February 22, 1943; 10:41 a. m.]

PART 1347—PAPER, PAPER PRODUCTS, RAW MATERIALS FOR PAPERS AND PAPER PRODUCTS, PRINTING AND PUBLISHING

[Correction to MPR 307]

WAXED PAPERS

In § 1347.612 (a) (3) the reference to "1347.621" is corrected to read "1347.620".

In § 1347.601, paragraphs (a) and (b), and § 1347.612 (a) (1) are corrected to read as set forth below:

§ 1347.601 * * *

(a) No person shall sell, deliver, or transfer any waxed papers at higher prices than the maximum prices set forth in Appendices A, B, C, D, E, and F (§§ 1347.615, 1347.616, 1347.617, 1347.618, 1347.619, 1347.620 respectively), and no manufacturer shall sell, deliver, or transfer any waxed papers at higher prices than the maximum prices set forth in Appendix G (§ 1347.621) of this Maximum Price Regulation No. 307.

(b) No person shall buy or receive any such waxed papers in the course of trade or business at higher prices than the maximum prices set forth in Appendices A, B, C, D, E, and F (§§ 1347.615, 1347.616, 1347.617, 1347.618, 1347.619, 1347.620, respectively) and no person shall buy or receive from a manufacturer any such waxed papers in the course of trade or business at higher prices than the maximum prices set forth in Appendix G (§ 1347.621) of this maximum price regulation.

§ 1347.612 * * * (a) * * *

(1) "Manufacturer" includes any person who manufactures or converts waxed papers, and includes the agents and representatives of such person. The manufacturer's maximum prices are applicable to all sellers of waxed papers set forth in §§ 1347.615 to 1347.620 inclusive.

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(Pub. Laws 421 and 729, 77th Cong.; E.O. 9250, 7 F.R. 7871)

Issued this 22d day of February 1943.

PRENTISS M. BROWN,
Administrator.

[F. R. Doc. 43-2872; Filed, February 22, 1943; 10:41 a. m.]

PART 1351—FOOD AND FOOD PRODUCTS

[Rev. MPR 270,[1] Amendment 1]

DRY EDIBLE BEANS, SALES EXCEPT AT WHOLESALE AND RETAIL

A statement of the considerations involved in the issuance of this amendment has been issued simultaneously herewith and filed with the Division of the Federal Register.*

Section 1351.1214 is amended to read as follows:

§ 1351.1214 *Geographical applicability.* The provisions of this regulation shall be applicable to the forty-eight states of the United States, and the District of Columbia.

This amendment shall become effective February 27, 1943.

(Pub. Laws 421 and 729, 77th Cong.; E.O. 9250, 7 F.R. 7871)

Issued this 22d day of February 1943.

PRENTISS M. BROWN,
Administrator.

[F. R. Doc. 43-2875; Filed, February 22, 1943; 10:42 a. m.]

PART 1351—FOODS AND FOOD PRODUCTS

[RPS 51[1] as Amended Feb. 22, 1943]

COCOA BEANS AND COCOA BUTTER

Sections 1351.59 (b) (3) and 1351.59 (d) have been added and § 1351.61 (g) amended by Amendment 3, so that Revised Price Schedule 51 shall read as follows:

During the past few months, the prices of cocoa beans, a wholly imported commodity, and cocoa butter have increased sharply as the result of uncertainties in the shipping situation and increases in transportation and insurance costs. This has occurred despite the fact that stocks of cocoa beans are now the largest ever accumulated in this country. Since the high nutritive value of the foods processed from cocoa beans makes them of material importance to both our armed forces and our civilian population, it is essential that any inflationary price rises in this commodity be curbed. The outbreak of hostilities in the Far East on December 7, 1941, gave rise to a sharp increase in speculative activity which caused this Office to issue a temporary freezing order on December 11, 1941, limiting prices to those prevailing on December 8, 1941.

In the intervening weeks, this Office has been engaged in a thorough study of the economic and trade position of cocoa beans and cocoa butter. Due consideration has been given to prices prevailing during the period October 1 to October 15, 1941, and adjustments made for relevant factors.

Therefore, to prevent any future price spiraling and to maintain the stability recently achieved by the trade, the Office of Price Administration hereby issues a permanent Schedule for cocoa beans and cocoa butter.

Accordingly, under the authority vested in me by Executive Order No. 8734, it is hereby directed that:

Sec.

1351.51 Maximum prices for cocoa beans and cocoa butter.
1351.52 Export sales.
1351.53 Exempt sales.
1351.54 Less than maximum prices.
1351.55 Evasion.
1351.56 Records and reports.
1351.57 Petitions for amendment.
1351.58 Enforcement.
1351.59 Definitions.
1351.60 Effective date of Revised Price Schedule No. 51.
1351.60a Effective dates of amendments.
1351.61 Appendix A: Maximum prices for cocoa beans.

AUTHORITY: §§ 1351.51 to 1351.62, inclusive, issued under E.O. 8734, 8875, 6 F.R. 1917, 4483; Pub. Laws 421 and 729, 77th Cong.; E.O. 9250, 7 F.R. 7871.

§ 1351.51 *Maximum prices for cocoa beans and cocoa butter.* On and after December 11, 1941, no person shall sell, offer to sell, deliver or transfer cocoa beans or cocoa butter, and no person shall buy, offer to buy, or accept delivery of cocoa beans or cocoa butter at prices higher than the maximum prices set forth in Appendices A and B hereof incorporated herein as §§ 1351.61 and 1351.62, except that

(a) Contracts entered into prior to December 11, 1941, may be carried out at the contract prices.

(b) Contracts for cocoa beans entered into prior to February 3, 1942, but subsequent to December 11, 1941, may be carried out at prices no higher than the maximum prices established in Price Schedule No. 51, as effective prior to Amendment No. 2.

(c) Special cocoa bean agreements now or hereafter entered into with Commodity Credit Corporation (United States Department of Agriculture, 1942, C.C.C., Cocoa Bean Form No. 1) providing for a price higher than the maximum price may be carried out at the contract price.

[§ 1351.51 as amended by Amendment 2, 7 F.R. 7404]

[NOTE: Supplementary Order No. 7 (7 F.R. 5176) provides that the prohibition contained in any price regulation against buying or receiving any commodity or service at a price higher than the maximum price permitted by such regulation shall not apply to any war procurement agency, or government whose defense is vital to the defense of the United States.]

[NOTE: Supplementary Order No. 31 (7 F.R. 9894) provides that: "Notwithstanding the provisions of any price regulation, the tax on transportation of all property (excepting coal) imposed by section 620 of the Revenue Act of 1942 shall, for the purposes of determining the applicable maximum price of any commodity or service, be treated as though it were an increase of 3% in the amount charged by every person engaged in the business of transporting property for hire. It shall not be treated, under any provision of any price regulation or any interpretation thereof, as a tax for which a charge may be made in addition to the maximum price."]

§ 1351.52 *Export sales.* To the maximum prices for cocoa beans and cocoa butter sold for export, except to Canada, the following additions may be made:

(a) Consular fees actually incurred by the seller; and

(b) Ten percent of the prices set forth in §§ 1351.61 and 1351.62.

[§ 1351.52 as amended by Amendment 1, 7 F.R. 2633]

§ 1351.53 *Exempt sales.* Sales of less than one bag of cocoa beans and of less

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[1] 8 F.R. 1061.

*Copies may be obtained from the Office of Price Administration.

[1] 7 F.R. 1307.